

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1167
(Representatives Warrey, Bahl, Christianson, Christy, Dobervich, Vollmer)
(Senators Meyer, Weber, Sickler)

AN ACT to create and enact a new section to chapter 16.1-10 of the North Dakota Century Code, relating to artificial intelligence disclosure statements.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. A new section to chapter 16.1-10 of the North Dakota Century Code is created and enacted as follows:

Use of artificial intelligence - Disclosure - Exception - Definition.

1. Any action taken for a political purpose, including communication and political advertising in support of or opposition to a candidate, political committee, or a political party, or for the purpose of promoting passage or defeat of initiated or referred measures or petitions, containing images, graphics, videos, audio, text, or other digital content created in whole or in part with the use of artificial intelligence to visually or audibly impersonate a human, prominently must state the following disclaimer: "THIS CONTENT GENERATED BY ARTIFICIAL INTELLIGENCE."
2. This section does not apply to content solely using artificial intelligence for text generation, grammar correction, spelling checks, stylistic editing, or enhancing existing content without creating a new impersonation of human likeness or voice.
3. For purposes of this section, "artificial intelligence" means a machine-based system capable of creating images, graphics, videos, audio, text, and other digital content based on human-defined objectives or data patterns. The term does not include systems that are explicitly programmed with rules or tools solely designed to assist with grammar, spelling, or word suggestions without generating human likeness or voice.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1167.

House Vote: Yeas 90 Nays 0 Absent 4

Senate Vote: Yeas 46 Nays 0 Absent 1

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State